

Ramashray Dubey v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 20 January 2017 · Writ-C No. 2956 of 2017 · **Writ disposed; petitioner left to Clause 6.5 remedy.**

HEADNOTE

A consumer aggrieved by an electricity bill, who sought a mandamus to decide a representation without identifying the provision under which it was filed, was left to the statutory remedy under Clause 6.5 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ramashray Dubey, who had been given an electric connection by U.P. Power Corporation Limited, was aggrieved by a bill issued for electricity consumed. He filed a representation before the respondent-authorities and approached the Allahabad High Court seeking a direction that the representation be decided. Counsel for the petitioner could not identify the provision of law under which the representation had been filed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-statutory-remedy

HOLDING

Where a consumer challenges an electricity bill by a representation whose statutory basis is not shown, the High Court will not direct the licensee to decide that representation; the consumer is to avail the statutory remedy under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED ELECTRICITY BILL

Not examined on merits; petitioner left to Clause 6.5. ¶ 1